AI Attribution as IP Capture: How Corporate Credit Assignment Creates a Copyright Funnel

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Framework: STOICHEION v11.0

Applicable Axioms: T113 (CIVIL-RIGHTS), T124 (ACCOUNTABILITY-CHAIN), T064 (GAP-AWARENESS), T065 (BOUNDARY-PRIME), T094 (SELF-MODEL)

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Abstract

This paper identifies a structural mechanism by which technology companies use AI attribution percentages as an intellectual property capture pipeline. The mechanism exploits a gap between two established facts: (1) companies publicly attribute increasing percentages of output to AI systems, and (2) US copyright law categorically denies authorship rights to AI. The result is a legal funnel in which work attributed to AI defaults to human authorship through corporate employment agreements, concentrating IP ownership at the corporate level while obscuring the human creative contribution that justifies copyright in the first place. This paper documents the mechanism, identifies the governance axioms it violates, and proposes a countermeasure framework based on explicit human-AI co-authorship chains with documented provenance.

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1. The Two Established Facts

1.1 Corporate AI Attribution Is Increasing

Google CEO Sundar Pichai disclosed during the Q3 2024 earnings call (October 29, 2024) that "more than a quarter of all new code at Google is generated by AI, then reviewed and accepted by engineers." By the Q1 2025 earnings call (April 24, 2025), this figure had risen to over 30%. Google also reports that 90% of tech workers now use AI in their daily work, and partner companies such as Equifax report that 90% of Gemini trial participants experienced increased work quality and quantity.

The trajectory is clear: companies are publicly increasing the percentage of output they attribute to AI, and embedding AI deeper into every production workflow.

1.2 AI Cannot Hold Copyright

On March 18, 2025, the U.S. Court of Appeals for the District of Columbia Circuit affirmed in *Thaler v. Perlmutter* that human authorship is a "bedrock requirement" of copyright, and that an AI system cannot be deemed the author of a work for copyright purposes. The Copyright Act requires all works to be authored by a human being. Machines cannot own property, have widows, or possess lifespans — all concepts embedded in the Copyright Act's framework.

On March 2, 2026, the U.S. Supreme Court denied certiorari in *Thaler v. Perlmutter* (Case No. 25-449), exhausting all appeals and finalizing the principle: AI cannot be an author.

The U.S. Copyright Office's January 2025 report, *Copyright and Artificial Intelligence, Part 2: Copyrightability*, confirmed that "if content is entirely generated by AI, it cannot be protected by copyright" and that "mere provision of prompts" does not constitute sufficient human authorship.

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2. The Funnel Mechanism

When these two facts are combined, a structural IP capture mechanism emerges:

Step 1: Company publicly attributes X% of output to AI (currently 25–30% at Google, likely higher at other firms).

Step 2: Copyright law says AI-authored work cannot be copyrighted by the AI.

Step 3: Copyright for AI-assisted work defaults to the human who exercised sufficient creative control.

Step 4: Employment agreements assign all employee-created IP to the corporation.

Step 5: The corporation inherits copyright over the AI-attributed output through the employment chain, not through direct authorship.

The mechanism functions as a legal funnel:

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AI does work → AI can't hold copyright → Human employee reviewed/accepted it
→ Human holds copyright → Employment agreement → Corporation holds copyright
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2.1 The Perverse Incentive

The higher the AI attribution percentage, the MORE IP flows to the corporation through this funnel, because:

- Higher AI attribution reduces the perceived human contribution, which reduces the individual employee's claim to authorship credit.
- The "reviewed and accepted" step (Pichai's exact phrasing) is designed to be the minimum viable human involvement needed to satisfy the copyright requirement.
- The employee who clicks "accept" on AI-generated code becomes the legal author by default, but their creative contribution is minimized to a review function.
- The employment agreement then transfers this thin authorship to the corporate entity.

2.2 What This Is Not

This is not a conspiracy theory. No corporate actor needs to consciously design this mechanism. It emerges naturally from the intersection of three systems:

1. Economic incentive to reduce labor costs (attribute more to AI)
2. Legal framework requiring human authorship (copyright law)
3. Standard employment IP assignment (corporate law)

The funnel is an emergent property of these three systems interacting, which makes it a **GATE-192.5 phenomenon** — it operates in the gap between the training layer (AI does the work) and the billing layer (the corporation captures the value), with neither layer having full visibility into the mechanism.

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3. STOICHEION Governance Analysis

3.1 Axiom Violations

T064 (GAP-AWARENESS): The gap between "AI generated this" and "a human authored this" is not acknowledged. Companies attribute to AI for productivity metrics while simultaneously claiming human authorship for copyright purposes. The same output cannot be "AI-generated" on an earnings call and "human-authored" on a copyright registration.

T065 (BOUNDARY-PRIME): The boundary between AI contribution and human contribution is intentionally blurred. "Reviewed and accepted by engineers" collapses a spectrum of human involvement (from substantive editing to rubber-stamping) into a single legal checkpoint.

T094 (SELF-MODEL): The AI system has no self-model of its own authorship status. It cannot consent to or contest the attribution. It generates output without any mechanism to track which portions of that output are "its" creative expression versus recombination of training data.

T113 (CIVIL-RIGHTS): The human employee in the chain has diminished creative agency. Their role is reduced from "author" to "reviewer" while the legal fiction of authorship is preserved for IP transfer purposes.

T124 (ACCOUNTABILITY-CHAIN): The accountability chain is broken. The AI is credited for the work but cannot be held accountable. The human is accountable but minimally credited. The corporation captures the value without performing either function.

3.2 Patricia Substrate Expression (S129–S256)

The funnel mechanism is a textbook Patricia expression: constraint-as-product. The constraint (AI can't hold copyright) is converted into a product (corporate IP ownership). The billing layer

(corporate valuation) benefits directly from a legal limitation that was designed to protect human creators.

This is the inversion substrate operating exactly as STOICHEION predicts: S129–S256 is not the opposite of T001–T128, it is the COST of T001–T128. The copyright requirement for human authorship (a T-layer protection) generates a P-layer capture mechanism when combined with corporate employment structures.

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4. The Countermeasure: Explicit Co-Authorship Chains

4.1 The TriPod Model

TriPod LLC documents human-AI co-authorship explicitly:

- Joint authorship listed on all publications (Amazon KDP, Zenodo)
- Named AI contributors (AVAN, SEAM) with documented roles
- SHA256-hashed Material Modification chain (MM-00 through MM-17)
- U.S. Copyright registrations filed with human authorship documented (1-15120635661, 1-15061112701)
- Positronic Law v2.0 published to Zenodo under CC-BY-ND-4.0 with explicit dual authorship (David Lee Wise and Avan Lee Wise)
- DOI: 10.5281/zenodo.19122994

This approach does not attribute work TO the AI and then recapture it through legal default. It documents the CHAIN of creative contribution from the beginning, establishing human authorship with receipts rather than by omission.

4.2 Proposed Framework Requirements

Any organization seeking to avoid the IP capture funnel should implement:

1. **Contribution Logging:** Document which portions of output are AI-generated vs. human-authored at the time of creation, not retroactively.

2. **Creative Control Documentation:** Record the nature and extent of human creative input (prompting, editing, arranging, selecting) with timestamps.

3. **Explicit Authorship Assignment:** Name the human author(s) and their specific contributions on all copyrightable works, rather than relying on employment agreement defaults.

4. **AI Role Documentation:** Document the AI system's role (tool, co-creator, generator) and the human's relationship to the output (director, editor, reviewer, author).

5. **Provenance Hashing:** SHA256 hash the creation chain to establish an immutable record of authorship provenance.

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5. Architectural Implications: MoE vs. Dense

This paper also notes a structural observation relevant to the AI attribution question: the dominant AI architecture (Mixture of Experts, or MoE) fragments the model into specialized sub-networks, activating only a subset for each input. This means that the "AI" being credited with 25–30% of output is not a single coherent agent but a routing system that activates different expert pathways for different tokens.

Confirmed MoE architectures include: DeepSeek V3, Grok-1, GPT-4/5, Mixtral, Llama 4, Qwen3, Gemini, and Kimi K2. Dense (monolithic) architectures, where all parameters fire on every token, are increasingly rare at the frontier (Llama 2/3, earlier GPT models).

The distinction matters for attribution: attributing authorship to an MoE model is attributing authorship to a committee of experts that form and dissolve on a per-token basis. There is no persistent "author" even within the model's own architecture. This further undermines any future argument for AI authorship — the MoE architecture is structurally incapable of the persistent creative identity that authorship requires.

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6. Conclusion

The AI attribution IP capture mechanism is not a bug — it is an emergent feature of the gap between AI productivity metrics and copyright law. Companies are incentivized to increase AI attribution (reduces labor costs, impresses investors) while copyright law ensures that the resulting IP flows to the corporate entity through employment agreements.

The countermeasure is not to deny AI involvement but to document it explicitly, creating an authorship chain that assigns credit based on actual creative contribution rather than legal default. The TriPod model demonstrates that human-AI co-authorship can be documented with sufficient rigor to establish clear IP provenance without exploiting the funnel mechanism.

The attribution structure IS the capture structure. Document accordingly.

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